

Calendar Line 2

Case Name: *Gonzalez v. Frontline Asset Strategies, LLC*
Case No.: 23CV412059

This is a consumer class action brought pursuant to the California Rosenthal Fair Debt Collection Practices Act (“RFDCPA”). Plaintiff Connie Gonzalez, a senior citizen, alleges that defendants Frontline Assets Strategies, LLC (“Frontline”) and Radius Global Solutions LLC (“Radius”)(collectively, “Defendants”) have a routine practice of sending initial written communications which fail to provide the notice required by Civil Code section 1788.14.5, subd. (e)(1) in an attempt to collect time-barred consumer debts.

Before the Court is Plaintiff’s motion for leave to amend, which is unopposed.¹ For reasons discussed below, the Court GRANTS Plaintiff’s motion.

I. BACKGROUND

According to the allegations of the Complaint, Plaintiff incurred a financial obligation in the form of a consumer credit account allegedly owned by Dish Network, LLC (“Dish”). (Complaint, ¶ 13.) The debt was incurred for personal, family, or household purposes. (*Ibid.*) Thereafter, Plaintiff was unable to pay the debt and defaulted. (Complaint, ¶ 14.)

Subsequently, Dish hired or contracted Defendants to collect the debt from Plaintiff on its behalf. (Complaint, ¶ 16.) On November 14, 2022, Defendants sent a collection letter to Plaintiff to collect the debt. (Complaint, ¶¶ 16, 18.) The letter was the first written communication from Defendants to Plaintiff in connection with the debt and did not include the notice required by Civil Code section 1788.14.5, subdivision (e)(1). (Complaint, ¶¶ 19-20.) Specifically, the letter failed to provide the true name of the debt collector. (Complaint, ¶ 20.) On information and belief, Plaintiff alleges that Defendants had knowledge that their conduct was directed towards a senior citizen. (Complaint, ¶ 21.)

Based on the foregoing, on March 9, 2023, Plaintiff initiated this action with the filing of the Complaint, which asserts a single cause of action for violation of the RFDCPA. On January 24, 2026, the Court issued its order which denied Radius’ motion for judgment on the pleadings.

II. MOTION FOR LEAVE TO AMEND

Plaintiff moves for leave to file her first amended complaint (“FAC”).

A. Legal Standard

Code of Civil Procedure sections 473, subdivision (a), and 576 provide that the court “may, in the furtherance of justice,” allow a party to amend any pleading. “It is well established that ‘California courts have “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” Indeed, “it is a rare case in which ‘a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may

¹ Radius filed a response but explicitly states that it does not oppose the motion.

properly present his [or her] case.’ ” Thus, absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail.” (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163 [internal citations omitted].)

“Leave to amend a complaint is thus entrusted to the sound discretion of the trial court. . . .” (*Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242 [internal citations omitted].) “[I]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048, (*Kittredge*)). The court does not abuse its discretion by denying leave to amend where the facts stated do not constitute a cause of action. (See *IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 654 (*IIG Wireless*)).

A motion to amend filed before trial must (1) include a copy of the proposed amended pleading, (2) state what allegations in the previous pleading are proposed to be deleted, and (3) state what allegations are proposed to be added to the previous pleading. (Cal. Rules of Ct., rule 3.1324(a).) The motion must also include a separate declaration that explains “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” (Cal. Rules of Ct., rule 3.1324(b).)

B. Discussion

Plaintiff moves for leave to amend her pleading so she can add factual allegations specific to Radius.

The Complaint was filed on March 9, 2023 and on August 19, 2024, Plaintiff filed an amendment to her Complaint to name Radius as Doe 1.

In the operative Complaint, Plaintiff brought claims against Frontline for violations of the RFDCPA. (Plaintiff’s Memorandum of Points and Authorities (“MPA”), p. 2:4-6.) Frontline transferred its website and ongoing business activities to Radius and initiated an assignment for the benefit of creditors proceeding in Florida state court. (MPA, p. 2:7-9.) Frontline’s debt collection business operations were merged or consolidated into Radius and continued by Radius. (MPA, p. 2:9-10.)

“Leave to amend a complaint is thus entrusted to the sound discretion of the trial court.” (*Branick, supra*, 39 Cal.4th at p. 242.) “[I]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge, supra*, 213 Cal.App.3d at p. 1048.) Prejudice exists where the amendment would require delaying the trial, result in the loss of critical evidence, add costs of preparation, or increase the burden of discovery, etc. (See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488; see also *Melican v. Regents of the Univ. of Calif.* (2007) 151 Cal.App.4th 168, 176.)

Plaintiff’s counsel Fred Schwinn submitted a declaration (“Schwinn Decl.”) in support of the instant motion in which he states that the proposed FAC seeks to add “factual allegations specific to [Radius]; clarify the complaint to add factual allegations that conform to the facts obtained in discovery, and narrow the scope of the violations alleged.” (Schwinn Decl., ¶ 6.) The class definition is unchanged. (*Ibid.*)

Plaintiff argues that the case is still in the early stages of litigation, no trial has been set and the parties are still engaged in discovery. (MPA, p. 3:14-15.) She contends that Radius will not be prejudiced by the proposed amendment as the additional allegation pertain to it. (MPA, p. 3:15-16.) She further contends that the putative class will be prejudiced if the instant motion is denied. (MPA, p. 4:9-10.) Moreover, Radius does not oppose the amendment.

Here, Plaintiff's request is procedurally proper and accompanied by the required declarations and facts. (See Cal. Rules of Ct., rule 3.1324(a) & (b).) Moreover, the Court agrees that Defendant will not be prejudiced by allowing Plaintiff to file the FAC. Thus, the Court finds that permitting amendment is proper.

Based on the foregoing, Plaintiff's motion is GRANTED.

III. CONCLUSION

Plaintiff's motion for leave to amend is GRANTED. Plaintiff's FAC is deemed filed and it must be served within 10 days of this order.

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Calendar Line 3

Case Name: *Guerrero v. JB Restaurant #4365, Inc., et al.*

Case No.: 23CV418940

This is a putative class and Private Attorneys General Act (“PAGA”) action. Plaintiffs Olivia Guerrero and Edith Martinez (collectively, “Plaintiffs”) allege defendants JB Restaurant #4365, Inc., JB Restaurant #401, Inc., JB Restaurant #438, Inc., JB Restaurant #476, Inc., JB Restaurant #483, Inc., JB Restaurant #3419, Inc., JB Restaurant #3425, Inc., JB Restaurant #3462, Inc., JB Restaurant # 3464, Inc., JB Restaurant #4388, Inc., LJ & MW Enterprises, Inc. (collectively, “Defendants”) committed various wage and hour violations.

Before the Court is Plaintiffs’ motion for final approval of settlement, which is unopposed. As discussed below, the Court issues its tentative ruling as follows.

I. BACKGROUND

According to the allegations of the operative second amended complaint (“SAC”), Plaintiff Guerrero was employed by Defendant as an hourly paid, non-exempt cook from approximately December 2015 to March 2023. (SAC, ¶ 4.) Plaintiff Martinez was employed by Defendants as an hourly paid, non-exempt cashier from approximately September 2020 to May 2023. (SAC, ¶ 5.)

Plaintiffs allege Defendants failed to, among other things: timely pay all wages owed, including minimum and overtime; provide meal periods or compensation in lieu thereof; provide rest periods or compensation in lieu thereof; provide complete and accurate wage statements; maintain complete and accurate payroll records; pay all wages due upon termination; fully reimburse for business expenses. (SAC ¶¶ 35-46.)

Based on the foregoing, Plaintiff Guerrero initiated this action on July 17, 2023 with the filing of the complaint and October 2, 2023, she filed her first amended complaint which asserted the following causes of action: (1) violation of Labor Code §§ 510 and 1198 (unpaid overtime); (2) violation of Labor Code §§ 1182.12, 1194, 1197, 1197.1, and 1198 (unpaid minimum wages); (3) violation of Labor Code §§ 2267, 512, subdivision (a), 516, and 1198 (failure to provide meal periods); (4) violation of Labor Code §§ 226.7, 516, and 1198 (failure to authorize and permit rest periods); (5) violation of Labor Code §§ 226, subdivision (a), 1174, subdivision (d), and 1198 (non-compliant wage statements and failure to maintain payroll records); (6) violation of Labor Code §§ 201 and 202 (wages not timely paid upon termination); (7) violation of Labor Code § 204 (failure to timely pay wages during employment); (8) violation of Labor Code §§ 2802 (unreimbursed business expenses); (9) civil penalties under Labor Code § 2698, *et seq.* (PAGA); (10) violation of Business & Professions